

Oklahoma Intestate Succession

Descent and Distribution Reference · 84 O.S. § 213



Governing Statute

Title 84, Wills and Succession, Chapter 4, Section 213 governs descent and distribution of the estate of any person dying without a will in Oklahoma. The statute has two operative frameworks: one for deaths prior to 7/1/1985, and one for deaths on or after 7/1/1985. The 1985 framework applies to the vast majority of estates encountered in title work.

Key term: "Joint industry" refers to property acquired by the joint effort of husband and wife during coverture (the period of marriage). This distinction controls several distribution outcomes under both frameworks.

Part A: Deaths Prior to 7/1/1985

If a person having title to any estate dies without a will on or before 6/30/1985, the estate descends and is distributed as follows:

Scenario	Distribution
Surviving spouse + 1 child (or issue of 1 child)	Equal shares to surviving spouse and child (or issue of that child).
Surviving spouse + 2+ children (or 1 living child + issue of deceased children)	1/3 to surviving spouse; remainder equally to children and issue of deceased children by right of representation.
Surviving spouse + no living children but surviving lineal descendants (grandchildren, etc.)	1/3 to surviving spouse; remainder to all lineal descendants. If all descendants are in the same degree of kinship, they share equally; otherwise by right of representation.
Surviving spouse + 2+ children, decedent married more than once	Spouse at time of death inherits of property not acquired during that coverture only an equal part with each living child and issue of deceased children.
No surviving spouse; surviving issue only	Entire estate to issue. Equal shares to children; issue of deceased children by right of representation.
No issue; surviving spouse + parents	1/2 to surviving spouse; 1/2 to father/mother (or equally to both if both survive).
No issue; surviving spouse; no parents	1/2 to surviving spouse; remaining 1/2 equally to siblings and children of deceased siblings by right of representation.
No issue; no spouse; surviving parents	Estate goes to father/mother, or equally to both if both survive.
Property acquired by joint industry; no issue	Entire estate goes to surviving spouse. At surviving spouse's death, 1/2 to heirs of husband and 1/2 to heirs of wife by right of representation.
No issue, no spouse, no parents; surviving siblings	Equal shares to siblings; children of deceased siblings by right of representation. Special rule for deceased minor decedent with no issue: estate goes to parents equally if living together; if not, to the parent having had care of the minor.

Scenario	Distribution
No issue; no spouse; no father; no living brother or sister (Fourth)	Estate goes to the mother, to the exclusion of issue of any deceased brothers or sisters.
No issue; surviving spouse; no parents, brothers, or sisters (Fifth)	Entire estate to surviving spouse.
No issue; no spouse; no parents; no siblings; next of kin (Sixth)	Estate to next of kin in equal degree. Collateral kin claiming through nearer ancestors preferred over those claiming through more remote ancestors.
Surviving child inherits from decedent then dies under age and unmarried (Seventh)	All estate that came to the minor child by inheritance from the decedent descends equally to other children of the same parent and to issue of any deceased such children by right of representation.
Seventh scenario, all other children also deceased (Eighth)	Estate descends to issue of all other children of the same parent. If all issue are in the same degree of kinship they share equally; if of unequal degree they take by right of representation.
No surviving spouse, issue, or kindred (Ninth)	Estate escheats to the State for support of common schools.

Part B: Deaths on or After 7/1/1985

Distribution proceeds in two steps: (1) determine the surviving spouse's share, then (2) distribute the remainder.

Step 1: Surviving Spouse's Share

Scenario	Surviving Spouse's Share
No surviving issue, parent, brother, or sister	Entire estate.
No surviving issue; but surviving parent(s), brother, or sister	(1) All property acquired by joint industry of husband and wife during coverture, plus (2) undivided 1/3 interest in all remaining estate.
Surviving issue, all of whom are also issue of surviving spouse	Undivided 1/2 interest in all property, whether acquired by joint industry or otherwise.
Surviving issue, one or more of whom are NOT issue of surviving spouse	(1) Undivided 1/2 interest in property acquired by joint industry during coverture, plus (2) undivided equal part in all remaining property with each living child and issue of deceased children by right of representation.

Step 2: Share Not Passing to Surviving Spouse (or if No Surviving Spouse)

Priority	Distribution
1. Surviving children and issue of deceased children	Undivided equal shares to surviving children and issue of deceased children by right of representation.
2. No surviving issue; surviving parent(s)	Undivided equal shares to surviving parent(s).

Priority	Distribution
3. No surviving issue or parent; issue of parents (siblings/nieces/nephews)	Undivided equal shares to issue of parents by right of representation.
4. No surviving issue, parent, or issue of parents; grandparents or issue of grandparents	1/2 to paternal side (grandparents if both survive, surviving grandparent, or issue of grandparents by representation). 1/2 to maternal side in same manner. If survivors on only one side, entire estate passes to that side.
5. No surviving issue, parent, issue of parents, grandparent, or issue of grandparent	Estate passes to next of kin in equal degree.
6. No surviving spouse, issue, parent, issue of parents, grandparent, issue of grandparent, or kindred	Estate escheats to the State for support of common schools.

Key Definitions • 84 O.S. § 213(B)(4)

Term	Definition
By right of representation	The estate is divided into as many equal shares as there are surviving heirs in the nearest degree of kinship and deceased persons in the same degree who left issue who survive the decedent. Each surviving heir in the nearest degree receives one equal share; the equal share of each deceased person in the same degree is divided among his issue in the same manner.
Issue	Lineal descendants -- all persons descended in a direct line from the decedent or other ancestor.
Joint industry	Property acquired through the joint effort of husband and wife during coverture. This is a rule of descent and distribution, not a rule of property; it does not vest any interest in the non-titleholder during the marriage. <i>Essex v. Washington</i> , 198 Okla. 145 (1947).
Coverture	The period of marriage.
Escheat	Reversion of the estate to the State of Oklahoma for support of common schools when no qualifying heirs exist.

Kindred of the Half Blood • 84 O.S. § 222

Kindred of the half blood inherit equally with those of the whole blood in the same degree, unless the inheritance came to the intestate by descent, devise, or gift of one of his ancestors, in which case all those who are not of the blood of such ancestor must be excluded from that inheritance.

Mineral Title Notes • Estates and Probate in Oklahoma

Key rules and thresholds relevant to landmen working Oklahoma mineral titles.

Topic	Rule
Governing law for mineral descent	Oklahoma law governs intestate succession for real property (including minerals) located in Oklahoma, regardless of decedent's state of residence. <i>White House Lumber Co. v. Howard</i> , 142 Okla. 163 (1930).
Summary probate -- when available	(1) Estate is \$200,000 or less; (2) decedent has been dead at least 5 years; or (3) decedent was a nonresident but owned Oklahoma property. 58 O.S. § 245.
Summary probate -- process	No inventory required; only one publication. Results in an Order Determining Heirship.
Order Determining Heirship	Confirms heirs and devisees. Conclusive as to rights of all heirs, legatees, and devisees, subject to appeal. 58 O.S. § 632.
Court approval for oil and gas leases from estates	Required. Notice published in the county where the land is located; lease sold to highest bidder. 58 O.S. § 925.
Court approval -- bonus value under \$500	Judge approval with jurisdiction sufficient; no formal notice or proceeding required. Evidence: court order or judge's handwritten approval on the lease reciting consideration was under \$500. 58 O.S. § 928.1.
Personal representative authority to lease	If will empowers the PR to execute an oil and gas lease, PR may execute with court approval required on the return of sale. 58 O.S. §§ 426, 462, 924.
Statutory pooling of unknown heirs	Operator may pool decedent and potential heirs under 52 O.S. § 87.1. Corporation Commission must make inquiry into sufficiency of search for heirs for pooling to be valid as to unknown heirs. <i>James Energy Co. v. HCG Energy Corp.</i> , 1992 OK 117.
Joint industry -- title effect	Does not vest the non-titleholding spouse with any interest during the marriage. Interest arises only at death of titleholding spouse. <i>Essex v. Washington</i> , 198 Okla. 145 (1947).

This reference is prepared for use by landmen and title professionals as a working field tool. It is not legal advice and does not substitute for the advice of qualified Oklahoma oil and gas counsel. Descent and distribution determinations in complex estates or those involving disputed heirship should be referred to a licensed Oklahoma attorney. Statute text reflects 84 O.S. § 213 as amended effective 7/1/1985.